

## Brigbhan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 December 2019 · WRIT - C No. 40179 of 2019 · WRIT - C No. 40179 of 2019 · **Writ disposed; petitioner to appear before EE for speaking final order; coercive action stayed seven weeks; s.127 liberty if aggrieved.**

### HEADNOTE

A consumer seeking certiorari against a tehsil recovery citation of Rs. 2,31,107 and a mandamus to decide his representation, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, obtained no merits quash. The Division Bench directed him to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection (whichever earlier), and left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. Default in appearance would revive the citation.

### FACTUAL SUMMARY

Brigbhan Singh challenged a Tehsildar, Lalitpur recovery citation dated 20 September 2019 demanding Rs. 2,31,107 and also sought a mandamus that respondent no. 2, the Executive Engineer, decide his representation dated 25 July 2018. He contended that the respondents were taking coercive action without giving him an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The electricity department appeared. The High Court heard the writ on 6 December 2019 and did not examine the quantum or legality of the demand on merits.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

relegation to speaking final order then s.127 appeal

#### HOLDING

Where a consumer challenges a recovery citation on the plea that coercive action was taken without hearing and without following the U.P. Electricity Supply Code, 2005, the writ court will not quash the citation on merits. It will direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a fixed time, stay coercive recovery for a limited period, and relegate any remaining grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear on the date fixed revives the citation. ¶ 1

### PRINCIPLE TAGS

**alternative-remedy-relegation-section-127** After directing the Executive Engineer to pass a speaking final order on the consumer's objections, the Court left any remaining grievance to a Section 127 appeal and did not decide the recovery on merits. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS. 2,31,107 COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHETHER THE PETITIONER HAD BEEN HEARD

Left to the Executive Engineer to decide by a speaking final order; further grievance relegated to Section 127. ¶ 1